

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3930

By: Stark

AS INTRODUCED

An Act relating to service animals; amending 4 O.S. 2021, Section 801, as amended by Section 1, Chapter 320, O.S.L. 2025 (4 O.S. Supp. 2025, Section 801), which relates to service animals; defining term; requiring certain written notice to be provided by seller or provider of an emotional support animal; requiring a person or business who provides verification of a disability-related need for an emotional support animal to provide certain written notification; requiring provider of a certificate, vest, or identification tag that identifies an animal as an emotional support animal to provide certain written notice; listing requirement for written notice; providing fines; clarifying that nothing in this act precludes certain available civil remedies; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 4 O.S. 2021, Section 801, as amended by Section 1, Chapter 320, O.S.L. 2025 (4 O.S. Supp. 2025, Section 801), is amended to read as follows:

Section 801. A. For purposes of this section:

1. The terms "place of public accommodation", "public accommodation" and "service animal" shall have the same meaning as

1 such terms are defined in 28 C.F.R., Section 36.104. "Service
2 animal" does not include an emotional support animal or a therapy
3 animal;

4 2. "Emotional support animal" means an animal selected to
5 reside with an individual with a disability that does not work or
6 perform tasks for the benefit of an individual with a disability and
7 does not accompany at all times an individual with a disability; ~~and~~

8 3. "Service animal" means a dog individually trained to do work
9 or perform specific tasks for a person with a disability; and

10 4. "Therapy animal" means a personal pet who is certified to
11 make therapeutic visits with a trained volunteer to places
12 including, but not limited to, nursing facilities, schools and
13 hospitals to bring therapeutic benefit, comfort and cheer to others.

14 B. A public accommodation may adopt a policy to prohibit
15 animals, except service animals, from entering the place of public
16 accommodation.

17 C. A public accommodation which adopts such a policy shall post
18 a sign in a conspicuous location outside the entrance of the place
19 of public accommodation stating which animals or types of animals
20 are prohibited. Such sign shall also state that service animals are
21 permitted.

22 D. If a public accommodation inquires into the qualification of
23 a service animal, the public accommodation shall comply with 28
24 C.F.R., Section 36.302(c)(6).

1 E. Any person who is not an individual with a disability or is
2 not trained to assist individuals with disabilities, who uses a
3 service animal in an attempt to gain treatment or benefits as an
4 individual with a disability shall, upon conviction, be guilty of a
5 misdemeanor.

6 F. No person shall knowingly present any animal or therapy
7 animal as a service animal or intentionally misrepresent entitlement
8 to an animal in his or her possession as a qualified service animal
9 for the purpose of obtaining any of the rights or privileges set
10 forth in state or federal law for an individual with a disability.
11 Any person who violates this subsection shall, upon conviction, be
12 guilty of a misdemeanor.

13 G. Any person or business that sells or provides an animal for
14 use as an emotional support animal shall provide written notice to
15 the buyer or recipient of the animal that states the following:

16 1. The animal does not have the special training required to
17 qualify as a service animal;

18 2. The user of an emotional support animal is not entitled to
19 the rights and privileges accorded by law to a service animal; and

20 3. Knowingly misrepresenting as a service animal any animal
21 that does not meet the requirements of a service animal, as defined
22 in this section, is a violation of Oklahoma law.

23 H. A person or business who provides verification of the
24 disability-related need for an emotional support animal shall

1 provide written notice to the buyer or recipient that states the
2 following:

3 1. The verification cannot be used to establish the emotional
4 support animal as a service animal;

5 2. The user of an emotional support animal is not entitled to
6 the rights and privileges accorded by law to a service animal; and

7 3. Knowingly misrepresenting as a service animal any animal
8 that does not meet the requirements of a service animal, as defined
9 in this section, is a violation of Oklahoma law.

10 I. A person or business that sells or provides a certificate,
11 vest, or identification tag that identifies an animal as an
12 emotional support animal shall provide written notice to the buyer
13 or recipient that states the following:

14 1. The item cannot be used to establish the emotional support
15 animal as a service animal;

16 2. The item does not entitle the user of an emotional support
17 animal to the same rights and privileges accorded by law to the user
18 of a service animal; and

19 3. Knowingly misrepresenting as a service animal any animal
20 that does not meet the requirements of a service animal, as defined
21 in this section, is a violation of Oklahoma law.

22 J. The written notices described in subsections G, H, and I, of
23 this section, shall be made in at least twelve-point bold type and
24 shall be provided on the receipt for the emotional support animal or

1 the product described in subsection I of this section, or on a
2 separate piece of paper that is attached to the receipt.

3 K. Any individual who violates subsections G, H, or I, of this
4 section shall be fined not less than One Hundred Dollars (\$100.00)
5 and not more than Two Hundred Fifty Dollars (\$250.00) for the first
6 violation, and not less than Five Hundred Dollars (\$500.00) for a
7 second violation and each violation thereafter.

8 L. Nothing in this act shall preclude any other civil remedies
9 available to a person, entity, or other organization arising from
10 misrepresentation by another person of a service animal.

11 SECTION 2. This act shall become effective November 1, 2026.

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